

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Limited Law & Motion /Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, July 07, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03833	Elizabeth Chavez vs. Merced County, et al.
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Motion for Summary Judgment

Defendant's motion for summary judgment is DENIED, as there are one or more triable issues of material fact.

Defendant's objection to the Declaration of Kay Greenley is OVERRULED. The objection to the Declaration of Anthony Andre is OVERRULED. Pursuant to Code of Civil Procedure section 437c, subdivision (q) the court will not rule on the remaining objections.

To grant summary judgment, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code of Civil Procedure section 437c subd. (c).)

"The court focuses on issue finding; it does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*J.H. v. Los Angeles Unified School Dist.* (2010) 183 Cal.App.4th 123, 139.)

All doubts regarding the existence of material issues of fact are resolved in favor of the party opposing summary judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1556, *modified* (June 15, 1992).)

In moving for summary judgment, Defendant assert three grounds to support summary judgment. (1) The County did not own, maintain, or control the subject intersection; (2) The evidence shows no dangerous condition existed at the time of the incident; and (3) Plaintiffs cannot establish the County created the alleged condition or had actual or constructive notice of the condition.

The court finds that there is a triable issue of material fact as to all three of Defendant's grounds for summary judgment.

As to the issue of control, Plaintiff has provided admissible evidence that creates a triable issue of material fact as to the County's control over the intersection in so far as visibility of the intersection and the traffic control signs; see Plaintiff's response to Defendant's UMF 11 and supporting evidence cited thereto; see also Plaintiff's AMFs 2-3, 6-7 and evidence cited thereto.

Turning to the issue of dangerous condition, Plaintiffs AMFs 29, 32 and evidence cited thereto create a dispute as to whether a dangerous condition existed at the time of the incident.

Last, Plaintiff has controverted the issue of notice as there is a dispute as to Defendant's UMFs 43-44; see Plaintiff's response to Defendant's UMFs 43-44 and evidence cited thereto regarding these facts. In addition, Plaintiff's AMFs 23-24, 28 also create a dispute as to actual or constructive notice; see evidence cited in Plaintiff's Separate Statement at 23-24 and 28 regarding these facts.

As there is a dispute as to control, the alleged dangerous condition, and notice, there are triable issues of material fact. Accordingly, the motion for summary judgment must be denied.

25CV-05078

Joann Johnson vs. PG&E Gas Company, et al.

Motion for Leave to File 1st Amended Complaint

Plaintiff's unopposed motion for leave to file a first amended complaint is GRANTED.

Plaintiff is to file their proposed first amended complaint within ten (10) days of this court's order.
